

SENATE BILL 2705

By Southerland

AN ACT to repeal Chapter 313 of the Private Acts of 1949; as amended by Chapter 679 of the Private Acts of 1949; Chapter 398 of the Private Acts of 1951; Chapter 219 of the Private Acts of 1953; Chapter 170 of the Private Acts of 1953; Chapter 111 of the Private Acts of 1963; Chapter 19 of the Private Acts of 1963; Chapter 366 of the Private Acts of 1968; Chapter 74 of the Private Acts of 1969; Chapter 274 of the Private Acts of 1974; Chapter 138 of the Private Acts of 1975; Chapter 306 of the Private Acts of 1982; Chapter 143 of the Private Acts of 1988; Chapter 1 of the Private Acts of 1991; Chapter 161 of the Private Acts of 1996; Chapter 29 of the Private Acts of 2003; Chapter 72 of the Private Acts of 2004 and Chapter 1 of the Private Acts of 2023, and any other acts amendatory thereto, relative to the Hamblen County Highway Department.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 313 of the Private Acts of 1949, as amended by Chapter 679 of the Private Acts of 1949, Chapter 398 of the Private Acts of 1951, Chapter 170 of the Private Acts of 1953, Chapter 219 of the Private Acts of 1953, Chapter 19 of the Private Acts of 1963, Chapter 111 of the Private Acts of 1963, Chapter 366 of the Private Acts of 1968, Chapter 74 of the Private Acts of 1969, Chapter 274 of the Private Acts of 1974, Chapter 138 of the Private Acts of 1975, Chapter 306 of the Private Acts of 1982, Chapter 143 of the Private Acts of 1988, Chapter 1 of the Private Acts of 1991, Chapter 161 of the Private Acts of 1996, Chapter 29 of the Private Acts of 2003, Chapter 72 of the Private Acts of 2004, Chapter 1 of the Private Acts of 2023, and any other acts amendatory thereto, are repealed effective August 31, 2028.

SECTION 2. The Hamblen County, Tennessee, Road Commission is abolished effective August 31, 2028. Should a vacancy on the Road Commission occur prior to August 31, 2028, the vacancy shall not be filled for the remainder of the unexpired term. Nothing in this Act shall be construed as having the effect of removing any incumbent from office or abridging the term of any official prior to the end of the term for which they were elected. The amount of

compensation paid to members of the Road Commission shall be determined by the legislative body of Hamblen County and is payable out of the county highway fund. The members of the Road Commission shall elect one (1) of their members to serve as chairman. A majority of the Road Commission shall constitute a quorum for the conduct of business.

SECTION 3. For the purpose of providing an efficient system of roads, highways, and bridges and the building, construction, reconstruction, maintenance and repair of roads, highways, and bridges in Hamblen County, Tennessee, the office of Road Superintendent for said County is hereby created. At the regular August election in 2028, and every four (4) years thereafter, a Road Superintendent shall be elected by popular vote by the qualified voters of Hamblen County to serve a term of four (4) years. The Road Superintendent shall assume office on September 1 following the election and shall continue to hold office until a successor is elected and qualified. The qualifications and salary for the Road Superintendent shall be as prescribed by the County Uniform Highway Law, Tennessee Code Annotated, Title 54, Chapter 7.

SECTION 4.

(a) The Road Superintendent shall have all the powers and duties set forth in the County Uniform Highway Law, Tennessee Code Annotated, Title 54, Chapter 7.

(b) In addition to the duties prescribed in subsection (a), the Road Superintendent, at the Superintendent's discretion, may oversee the Hamblen County Sanitation Department. Any supplemental salary arising out of and relating to such oversight of the Hamblen County Sanitation Department shall be subject to the approval of the legislative body of Hamblen County.

SECTION 5. Purchasing for the highway department shall be governed by the County Uniform Highway Law, Tennessee Code Annotated, Title 54, Chapter 7, and any other purchasing laws applicable to Hamblen County.

SECTION 6. All laws or parts of laws in conflict with this act are hereby expressly repealed. If any provision of this act or the application thereof to any person or circumstance is

held invalid, such invalidity shall not affect other provisions or applications of the act which can be given without the invalid provision or application, and to that end, the provisions of this act are declared to be severable.

SECTION 7. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Hamblen County. Its approval or nonapproval shall be proclaimed by the presiding officer of the county legislative body and certified to the Secretary of State.

SECTION 8. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective upon being approved as provided in Section 7.